

fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground].)

Furthermore, Defendant Bowers and Defendant Kaplan answered the Fifth Amended Complaint on March 14, 2024. While Defendant IPA and Ms. Burness filed an amended answer following a motion for leave to amend this did not have the legal effect of extinguishing Defendant Bowers and Defendant Kaplan’s answer. (The Court also notes that Plaintiff requested default as to both Defendant Bowers and Kaplan which was rejected with the stated reason that “Default cannot be entered on Defendant as an Answer was Filed 03/14/24.”)

Defendants are entitled to summary adjudication on Plaintiff’s claim for intentional and negligent representation.

(8) declaratory relief (against Burness and Bowers)

Finally, Defendants move for summary adjudication on Plaintiff’s claim for declaratory relief on several grounds: first, to the extent that Plaintiff is seeking a declaration that Dr. Bowers violated his fiduciary duties to Plaintiff this is precluded by the loss of Plaintiff’s breach of fiduciary duty claim; second, to the extent Plaintiff seeks a declaration that she entered into a billing services agreement, it is undisputed that there is no written billing services contract.

In opposition, Plaintiff argues that “Defendant Kenneth Bowers has no standing to bring a motion for summary judgment or summary adjudication on the declaratory relief cause of action because he is no longer a party to this action” and “Defendant Ute Burness cannot establish that there is no triable issue of fact that she entered into a contract with Dr. Mbadike Obiora when she claims she has no recollection of the event.” (Opp. at 32:11-14 and 32:19-22.)

These arguments are not substantively responsive to Defendants’ moving arguments. Furthermore, Plaintiff is incorrect that Defendant Bowers is no longer a party to this action.

Defendants are entitled to summary adjudication on Plaintiff’s declaratory relief claim.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

15. 9:00 AM CASE NUMBER: MSC21-02266
CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.
HEARING ON DEMURRER TO: PLAINTIFF LAURA WITTENBERG'S 4TH AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant East Bay Municipal Utility District’s Demurrer to Plaintiff Laura Wittenberg’s Fourth Amended Complaint is **sustained without leave to amend**.

I. Background

Plaintiff Laura Wittenberg owns property located at 7 Mariposa Lane in Orinda, California. On November 3, 2021, Plaintiff filed her original complaint against Hacienda Homes, Inc. dba Roads of Hacienda (“Hacienda”) alleging that her property sustained significant damage due to Hacienda’s drainage system and retaining wall. Plaintiff also alleged that an East Bay Municipal Utility District (“EBMUD”) water main break outside her property and adjacent to Hacienda’s retaining wall caused water to enter her property.

On December 30, 2019, Plaintiff submitted a government claim to EBMUD arising from the alleged water main break. (Messrobian Decl., Ex. G.) Plaintiff filed her original complaint against Hacienda only, asserting causes of action based on alleged drainage and retaining wall failures. Although Plaintiff referenced the EBMUD water main break in her pleading, she did not name EBMUD as a defendant at that time.

On November 5, 2022, Plaintiff filed a Second Amended Complaint (“2AC”) against Hacienda, again alleging damage caused in part by the water main break, but still did not name EBMUD as a defendant. On December 12, 2022, Plaintiff filed a Doe amendment to the 2AC identifying EBMUD as Doe 1. Plaintiff thereafter dismissed EBMUD from the action without prejudice.

On November 8, 2024, Plaintiff filed a Third Amended Complaint (“3AC”) against Hacienda and named EBMUD as a defendant in place of Doe 1. EBMUD demurred to the 3AC, and the court sustained EBMUD’s demurrer with leave to amend. Plaintiff thereafter filed her Fourth Amended Complaint (“4AC”) on June 25, 2025.

The 4AC asserts a ninth cause of action for negligence against EBMUD. Plaintiff alleges that she filed a government claim arising from the 2019 water main break and EBMUD closed its file on the claim without notice to her. (4AC ¶¶ 86–88.) Plaintiff alleges that EBMUD had a duty to investigate her claim for the purpose of compensating her for the damage EBMUD’s infrastructure allegedly caused, and that EBMUD is liable based on its alleged failure to investigate the claim or pay for damage to her property. (4AC ¶¶ 87–88.) That is, Plaintiff seeks to impose liability on EBMUD based on its alleged failure to investigate, process, or pay her government claim, rather than on any negligent conduct causing in the water damage.

EBMUD now demurs to the Ninth Cause of Action in the Fourth Amended Complaint. Plaintiff filed her opposition to the demurrer on November 3, 2025, and EBMUD filed its reply on November 7, 2025.

II. Legal Standard

A demurrer tests the sufficiency of a complaint by raising questions of law. (See *Seidler v. Municipal Ct.* (1993) 12 Cal.App.4th 1229, 1233.) It challenges defects that appear on the face of the complaint, or from matters outside the complaint that are judicially noticeable. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A plaintiff cannot survive a demurrer unless he has “pleaded facts sufficient to establish every element of that cause of action.” (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879–880.) Material facts are deemed true for purposes of a demurrer. However, contentions, deductions, or

conclusions of fact or law are not deemed true. (See *Quan v. Truck Ins. Exch.* (1998) 67 Cal.App.4th 583, 589.)

A public entity is not liable for an injury except as provided by statute and a plaintiff must plead with particularity every fact essential to statutory liability. (Gov. Code, § 815 (a); *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1179; *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.)

III. Analysis

A. Meet and Confer

The parties' counsel met and conferred via telephone and email regarding the sufficiency of Plaintiff's pleading in compliance with Code of Civil Procedure section 430.41. Despite these efforts, the parties were not able to resolve the issues raised in this demurrer. (Messrobian Decl., ¶ 11.)

B. Plaintiff Fails to Plead a Duty of Care

Under Government Code section 815, subdivision (a), all liability claims against a public entity must be based on statute. Thus, direct liability for common law claims is not permissible against a public entity. (*Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 986.) As to public employees, section 820 provides that "[e]xcept as otherwise provided by statute . . . a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code, § 820.) Thus, absent a specific immunity, the "general rule is that an employee of a public entity is liable for his torts to the same extent as a private person and the public entity is vicariously liable for any injury which its employee causes to the same extent as a private employer." (*San Mateo Union High Sch. Dist.*, 213 Cal.App.4th at pp. 432–33.)

Plaintiff argues and alleges EBMUD itself owed a duty of care to Plaintiff to investigate her claim, obtain adequate documentation of her claim, maintain records for her claim, and provide reasonable communication and correspondence regarding the status of the claim for the ultimate purposes of compensating Plaintiff for her losses. (Opp Brf., 3:7-10, citing 4AC ¶¶ 87-90.) Plaintiff also cites to government Code sections 815.2 and 815.4 which impose vicarious liability on EBMUD for the negligence of its employees and independent contractors (but neither statute refers to any specific act or omission which may give rise to liability). Thus, Plaintiff's cause of action appears premised on: (1) a direct claim against EBMUD under section 815.6 for violation of a supposed mandatory duty; and (2) a claim against unnamed employees and contractors for whom EBMUD could have vicarious liability.

Under Government Code section 815.6, a public entity may be liable if it is "under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury." This "mandatory duty" exception to sovereign immunity requires that a statute express its command in "explicit and forceful language." (*In re Groundwater Cases* (2007) 154 Cal.App.4th 659, 689.) The 4AC fails to state a direct claim against EBMUD because Plaintiff does not identify a statute imposing a mandatory duty on EBMUD with respect to the manner in which it handled her claim.

Nor can any unnamed employees or contractors be held liable on Plaintiff's negligence claim because it is predicated existence of a legal duty of care which has not been shown to exist. Employees and

contractors of a public entity have no general duty to protect members of the public such as Plaintiff, and Plaintiff does not plead the existence of a special relationship that might create such a duty. Where alleged employees or contractors would not be directly liable, there is no basis to impose vicarious liability on EBMUD. (Gov. Code, § 815.2; and see Gov. Code § 815.4 [“[n]othing in this section subjects a public entity to liability for the act or omission of an independent contractor if the public entity would not have been liable for the injury had the act or omission been that of an employee of the public entity.”])

In addition, “even when a duty exists, California has enacted specific immunity statutes that, if applicable, prevail over liability provisions.” (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 348; *Towery v. State of Cal.* (2017) 14 Cal.App.5th 226, 233–234 [“any general theory of liability against public entities is subordinate to the specific immunity provision”].) In other words, “[i]f a specific immunity statute applies, it ‘cannot be abrogated by a statute which simply imposes a general legal duty or liability’” (*Caldwell, supra*, 10 Cal.4th at p. 986).” (*Creason v. Dept. of Health Services* (1998) 18 Cal.4th 623, 635.) And, if a public employee is immune, so is the public employer. (Gov. Code, § 815.2 (b).)

Here, EBMUD would appear to be shielded by the immunity in Government Code section 820.2. Under that section, a public employee (and, by operation of section 815.2, subdivision (b), the public employer) is “not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused.”

Plaintiff attempts to avoid immunity by suggesting that EBMUD personnel failed to exercise any discretion at all. (See Opp., p. 10.) However, the allegations of the 4AC do not support that framing. For example, Plaintiff does not allege that EBMUD wholly ignored her claim or refused to consider it; instead she challenges the adequacy of the investigation. Allegations that an investigation was insufficient or incomplete necessarily implicate discretionary decision making.

County of Los Angeles v. Superior Court (2012) 209 Cal.App.4th 543 is instructive here. In that case, the plaintiffs argued that the County could have prevented an attack by two dogs if the County had conducted an adequate investigation. The appellate court rejected the plaintiffs’ argument and explained:

Plaintiffs’ argument amounts to a claim that the County did not conduct an adequate investigation. This argument demonstrates the County’s duty was not mandatory because the duty of a public entity is not mandatory if it is debatable whether the duty was adequately fulfilled. (See *de Villers [v. County of San Diego]* (2007) 156 Cal.App.4th 238], pp. 260–261 [“when the statutorily prescribed act involves debatable issues over whether the steps taken by the entity adequately fulfilled its obligation, ... the act necessarily embodies discretionary determinations by the agency regarding how best to fulfill the mandate, and this discretion removes the duty from the type of activity that supports a claim under [Government Code] section 815.6”].)

...

An enactment requiring a public entity to conduct an investigation under certain circumstances does not, without more, impose a mandatory duty to take certain specified action. (See *State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 858 [“The

commissioner's mandatory statutory duty to 'investigate' the Robinson complaint may not reasonably be read as imposing a mandatory duty on the commissioner to take action in the event the commissioner's investigation discloses evidence of wrongdoing.”]; see also *MacDonald v. California* (1991) 230 Cal.App.3d 319, 331 [“[E]xecution of the [statutory] duties to visit day care homes and investigate complaints necessarily involves some exercise of discretion in deciding what action to take, and when, to evaluate and assess a particular situation. A party disagreeing with or harmed by the exercise or nonexercise of such discretion has not explicitly been provided any remedy in damages by the Legislature.”]]

(*County of Los Angeles, supra*, at 554.)

When suing a public entity, a plaintiff is required to plead with particularity every fact essential to statutory liability. (*Lopez v. Southern Cal. Rapid Transit Dist., supra*, 40 Cal.3d at 795-796.) Wittenberg has not cited any provision that imposed a duty on EBMUD or its employees or contractors to take any particular action in its investigation of her December 2019 claim.

Plaintiff’s theory fails for the additional reason that EBMUD never owed Plaintiff a duty to pay her claim. The presentation of a government tort claim is a procedural prerequisite to suit, not a mechanism that creates an obligation to pay compensation at the claim stage. Plaintiff cites no statute, regulation, or authority imposing such a duty, and therefore cannot establish that she suffered legally cognizable damages arising from the alleged negligent claims handling.

C. Statute of Limitations

EBMUD argues that any claim against it seeking recovery for property damage arising from the alleged water main break is barred by the statute of limitations. Under the Government Claims Act, a cause of action accrues on “the date upon which the cause of action would be deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto” if there were no government claim requirement. (Gov. Code, § 901.) A cause of action for property damage accrues when the defendant’s act causes immediate and permanent injury to the property, or when there is actual and appreciable harm. (*Siegel v. Anderson Homes, Inc.* (2004) 118 Cal.App.4th 994, 1005.)

Applying those principles, EBMUD contends that Plaintiff’s cause of action for property damage accrued in December 2019, when Plaintiff alleges she became aware of water entering her property and submitted a government claim to EBMUD on December 30, 2019. (Gov. Code, § 901.) EBMUD further asserts that, under Government Code section 912.4, the claim was deemed rejected by operation of law when the District did not act on it within 45 days, as Plaintiff alleges occurred here. (4AC ¶ 88.) Where no written notice of rejection is given, an action against a public entity must be filed within two years of accrual. (Gov. Code, § 945.6(a)(2).) On that basis, EBMUD maintains that any cause of action seeking recovery for property damage was required to be filed no later than June 2022 and is therefore time-barred.

Plaintiff alleges that her government claim “remains open and active, and/or should be open and active.” (4AC ¶ 22.) This contradicts the allegation at paragraph 88 that EBMUD closed Plaintiff’s claim without notice to her. As EBMUD points out, Government Code section 912.4 states that a public entity has 45 days to grant or deny a claim, or the claim is deemed rejected by operation of law. (Gov.

Code, § 912.4(c).) Plaintiff does not allege any basis to extend the period within which EBMUD was required to act on her claim. Thus, Plaintiff's assertion that her property damage claim is or should be open is contrary to law.

To the extent Plaintiff's claim could be construed as seeking recovery based on EBMUD's negligence in managing the conditions that resulted in property damage, such a claim would be time-barred for the reason stated above. However, the statute of limitations issue is not dispositive here because Plaintiff has not framed her ninth cause of action as one seeking recovery for negligence in managing EBMUD's property. Instead, she claims that EBMUD is liable for negligently handling her government claim.

In reply, EBMUD relies on *Slater v. Blackwood* (1975) 15 Cal.3d 791 to argue the ninth cause of action is merely a new legal theory for the same 2019 property damage. It is. But *Slater* addressed claim preclusion following a final judgment, not whether a plaintiff may assert a different theory of liability in the absence of a prior adjudication on the merits. Here, there has been no judgment against Plaintiff on a claim against EBMUD, so the issue is not claim splitting but whether the negligent-claims-handling theory states a cognizable cause of action at all. Plaintiff cites no authority recognizing such a cause of action and identifies no statute imposing a duty on a public entity to investigate or pay a claim at the claim-presentation stage.

Moreover, Plaintiff's 4AC fails to state a cause of action against EBMUD under Plaintiff's negligent-claims-handling theory because Plaintiff has not alleged, and it is apparent on the face of the pleading cannot at this stage allege, compliance with the claims presentation requirements under the Government Claims Act in as much as this would be an independent tort which itself would have been subject to such prior presentation. (See Govt. Code § 810 et seq.)

For these reasons, the Court finds that Plaintiff's negligence claim fails matter of law.

IV. Disposition

Based on the foregoing, EBMUD's demurrer is **sustained without leave to amend**. Plaintiff has not identified any manner in which the 4AC could be amended to state a viable cause of action. If Plaintiff contests this ruling, she must appear at the hearing prepared to explain how the pleading could be amended to cure the deficiencies discussed above.

16. 9:00 AM CASE NUMBER: MSC21-02266
CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:

TENTATIVE RULING:

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint (FAXC) is continued to **February 9, 2026**.

EBMUD demurs to Hacienda's cross-complaint for indemnity, contribution, and declaratory relief on